

Supreme Court of the State of New York
Appellate Division, First Judicial Department

Present – Hon. Dianne T. Renwick,
Sallie Manzanet-Daniels
Troy K. Webber
Peter H. Moulton
Tanya R. Kennedy,

Presiding Justice,

Justices.

Elizabeth Guerrero,
Plaintiff-Respondent,

Motion No. 2026-00396
Index No. 805126/18
Case No. 2025-07065

-against-

New York Downtown Orthopaedic Associates
of Manhattan and New York Downtown
Orthopaedic Associates,
Defendants-Appellants.

BIK Orthopaedics, P.C. doing business as
New York Downtown Orthopaedic Associates
of Manhattan and New York Downtown
Orthopaedic Associates,
Third-Party Plaintiffs-Appellants,

-against-

Elizabeth Melvin, P.T. and Wojchiech
Karpinski,
Third-Party Defendants-Respondent.

An appeal having been taken to this Court from an order of the Supreme Court,
New York County, entered on or about October 09, 2025,

Now, upon reading and filing the correspondence from counsel for
defendants/third-party plaintiffs-appellants, dated January 22, 2026, and due
deliberation having been had thereon,

It is ordered that the appeal is deemed withdrawn in accordance with the aforesaid correspondence.

ENTERED: March 03, 2026

A handwritten signature in black ink, reading "Susanna Molina Rojas". The signature is fluid and cursive, with the first name "Susanna" being more prominent and the last name "Rojas" following in a similar style.

Susanna Molina Rojas
Clerk of the Court